

		unreasonable.” “In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence.” (<i>Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.</i> (2008) 163 Cal.App.4th 550, 563–564.) After having reviewed the supporting declarations from counsel, including the billing records, and based on the court’s familiarity with the presentation of this case and the actions that were required, the court finds Petitioner is entitled to a reasonable award of \$180,260 in attorneys’ fees. This amount was reached by the findings summarized in the table, below. <table><tr><td></td><td>G. Pleasants</td><td>B. Murdock</td><td>L. Fink</td></tr><tr><td>Hourly Rate</td><td>\$600</td><td>\$600</td><td>\$700</td></tr><tr><td>Time Reasonably Spent</td><td>246.2</td><td>24.6</td><td>25.4</td></tr><tr><td>Total</td><td>\$147,720</td><td>\$14,760</td><td>\$17,780</td></tr></table> The court does not find that an “across-the-board” cut of 50% is appropriate; however, certain “line items” on the billing statements were deducted for inefficiencies, duplication, and the performance of tasks that are considered clerical (for which Petitioner seeks compensation at an attorney rate). Additionally, the court does not find that a multiplier is warranted, here, because applicable factors (such as the contingency nature of the retainer agreement), were already considered when the court set the hourly rates. (<i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1138.) Petitioner is ordered to give notice of the ruling.		G. Pleasants	B. Murdock	L. Fink	Hourly Rate	\$600	\$600	\$700	Time Reasonably Spent	246.2	24.6	25.4	Total	\$147,720	\$14,760	\$17,780
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3	2022-01246149 Ferhat v. Cara	Motion to Set Aside/Vacate Default Before the Court is Defendant Peter Nisson’s Motion to vacate the 2/6/23 default entered against him on Plaintiff Abderrahane Ferhat’s First Amended Complaint (FAC). The Proof of Service filed shows that Mr. Nisson was personally served with the FAC on 11/10/22 at 10:20 am. (ROA 37). Default was entered a few months later on 2/6/23. (ROA 59). Defendant does not challenge service of the FAC.																

		Rather, he testifies that he believed that he filed his answer on 2/10/23 and thereafter took no further action as to this lawsuit for over a year and a half. (Nisson Decl., ¶¶7, 8.) The Docket does show that he tried to electronically file an answer on 2/10/23 using LegalConnect. Unfortunately, default had already been entered preventing the filing of the answer. But the Clerk gave notice of the rejection, which specifically indicated that “Answering party has already been defaulted.” (ROA 60). This Motion was not filed until 8/7/24. (ROA 113). Defendant testifies that he “did not learn of the default entered on or about 02/06/2023 until July 9, 2024 when I was informed of the default/continued trial date by Counsel for Co-Defendants Jesse J. Thaler, Esq.” (Nisson Decl., ¶9). First, Defendant appears to argue that the “judgment” is void pursuant to CCP § 473(d). He argues that the Prayer for Relief in the FAC does not give him notice of any amounts. But, there is no judgment entered against him. Defendant has not cited any law for the proposition that the default is “void” for these reasons. The Court will hear argument on this issue. Second, Defendant argues mistake, inadvertence, surprise, or excusable neglect pursuant to CCP § 473(d). A motion for discretionary relief must be filed within 6 months after the clerk's entry of default. The motion is ineffective if filed thereafter, even if it is within 6 months after entry of the default <i>judgment</i> (these are separate procedures). (D.R.S. Trading Co., Inc. v. Barnes (2009) 180 CA4th 815, 820—limitations on motions to reconsider under § 1008 not applicable to motions for relief from default judgment for “mistake, inadvertence, surprise or excusable neglect”.) The Court cannot grant the Motion pursuant to CCP §473(b). The Court will hear from Defendant before issuing a final ruling. This Motion is not opposed. Defendant can meet and confer with Plaintiff’s Counsel to see if a resolution can be reached by stipulation.
4	2024-01403640	1) Demurrer to Complaint 2) Motion to Strike Portions of Complaint